

2nd MOOT PROPOSITION

The Republic of Indica is a Sovereign, Socialist, Secular, Democratic Republic with a federal structure and a parliamentary system of government. Its legal framework is a hybrid of Common Law inheritance and a transformative Written Constitution. All its laws including the Constitution of Indica are in *pari materia* with that of India. The Constitution of Indica is the supreme law of the land. Decisions of the Supreme Court of Indica are binding on all subordinate courts.

In 2023, the Parliament of Indica enacted the Digital Personal Data Protection Act 2023 (DPDPA). It governs the processing of "Digital Personal Data" and establishes a regime of accountability. This act established the National Data Protection Board (NDPB) which has the duty to prevent data breaches by maintaining confidentiality of data and also has the power to hear concerns and complaints regarding any breach of personal data.

Further, on November 15, 2025, the Parliament of Indica passed the Sentinel Surveillance and Predictive Policing Act, 2025 (SSPPA). The Preamble of the Act states its objective as *"the pre-emptive identification of threats to national security, public order, and the digital sovereignty of Indica."* Some of the key provisions of this Act were:

- **Section 5:** Empowers the State to deploy "Autonomous Facial Recognition Systems" (AFRS) in all public spaces, including protests, transport hubs, and educational institutions.
- **Section 9:** Introduces a "Predictive Threat Scores" (PTS) software programme for every person resident in Indica, generated by analyzing social media activity, financial transactions, and metadata. A PTS above 75/100 allows the police to place an individual under "preventive digital house arrest," involving the suspension of their internet access and social media accounts.
- **Section 14:** Grants the Central Government "backdoor access" to all end-to-end encrypted messaging platforms for the purpose of "tracing the first originator" of messages deemed "prejudicial to the sovereignty, security and integrity of the state."

Ms. Paula Taylor, a 24-year-old British national and an investigative journalist currently residing in India has been employed with a leading civil rights NGO called "Digital Rights Alliance" in the State of Indica for the last 5 years. However, she has not obtained Indican citizenship till date. Further, she has been a vocal critic of the SSPPA. On December 20, 2025, she published an exposé alleging that the PTS software programme was biased against foreign nationals and was introduced to indirectly drive out foreign nationals from the State of Indica. On December 31, 2025, while Ms. Taylor was attending a peaceful candlelight vigil in the capital city of Astana, she was identified by an Automatic Facial Recognition System (AFRS) drone. Simultaneously, her

PTS spiked to 82 due to a series of encrypted messages she sent regarding a future protest. Ms. Sen received an automated notification on her phone stating:

"Your PTS has reached 82. You are now categorized as a 'Person of Interest.' Any participation in public gatherings will be deemed a violation of Public Order."

Thereafter, acting under S.9 of the SSPPA, the police detained Ms. Sen for 72 hours without a warrant, citing "imminent threat to public order" due to her participation in the candlelight vigil on 31st December. Her personal laptop and smartphone were seized, and she was asked to provide her biometric credentials to unlock them. However, during the period of detention, she was granted access to legal representation, and her biometric data (iris scan and facial map) was later updated in the national database only after her consent for the same was taken without her being subjected to any force or coercion. But when she was released, she found her bank accounts temporarily frozen and her "Digital Identity Card" suspended, effectively rendering her unable to travel or conduct financial transactions both within Indica and the UK.

On January 2, 2026, a major data breach occurred at the National Sentinel Data Hub which is maintained by the Ministry of Electronics and Information Technology, Government of Indica. The PTS records, private chat logs, and biometric data of over 2 million citizens including those of Ms. Taylor were leaked on to the dark web. The Government issued a statement claiming that the breach was an "act of foreign state-sponsored cyber-warfare" and denied any liability whatsoever. Aggrieved by the data breach, Digital Rights Alliance (DRA) and Ms. Paula Taylor filed a Writ Petition before the Supreme Court of Indica under Art.32 of the Constitution of Indica. They contend that the data breach as well as Ms. Taylor's detention beyond a day has violated her fundamental rights of privacy and protection against arbitrary detention respectively. Petitioners further challenge the Constitutional validity of Ss.5, 9 and 14 of the SSPPA and pray to the court to strike them down as unconstitutional provisions.

On the other hand, the Union of Indica argues that matters of predictive policing applicable for both Indican and foreign nationals are "sovereign functions" involving complex national security issues and policy matters that are not subject to judicial review. The union also contends that the petitioners have approached the apex court of Indica without exhausting the available alternative remedies. The matter has now been posted for final hearing before the Supreme Court of Indica which has framed the following issues to be decided during the course of the hearing:

- (1) Whether the present writ petition before the Supreme Court of Indica is maintainable or not?
- (2) Whether the petitioner's fundamental rights under the relevant provisions of the Constitution of Indica have been violated?

- (3) Whether the impugned provisions of the SSPPA should be declared unconstitutional and void?
- (4) Whether national security issues and policy matters are beyond the scope of judicial review?